

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
S.T. BY HIS MOTHER AND NATURAL
GUARDIAN AND PARENT, SERINA MOYA AND
M. L., BY HIS MOTHER AND
NATURAL GUARDIAN AND PARENT,
VERONICA L. POWELL

Plaintiffs,

**SUMMONS WITH VERIFIED
COMPLAINT**

-against-

Index No.:

Date Purchased:

THE CITY OF NEW YORK AND THE NEW
YORK CITY POLICE DEPT., POLICE OFFICER
SANCHEZ (SHIELD NUMBER CURRENTLY
UNKNOWN), POLICE OFFICER JONATHAN
NAVAREZ, TAX ID 946524/SHIELD #25389,
POLICE OFFICER WESTERNDORF
TAX ID 941256, POLICE OFFICERS
JOHN AND JIM DOE (WHOSE IDENTITIES
ARE PRESENTLY UNKNOWN AND SUED UNDER
FITICTIUOS NAMES), ALL IN THEIR
INDIVIDUAL CAPACITY AND IN THEIR
CAPACITY AS POLICE OFFICERS.

Defendants.

-----X
To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 26th day of February, 2020

EMDIN & RUSSELL, LLP.
Royce Russell, Esq., as Counsel
Attorneys for Plaintiffs
C/o Jeffrey L. Emdin Esq.
330 West 38th Street, Ste 302
New York, New York 10018
Tel: (718) 785-8890

Defendants address:

City of New York
C/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Police Officer Sanchez
(Shield Unknown)
c/o 32nd Pct.
250 West 135th Street
New York, NY 10030

Police Officer Jonathan Navarez
Tax ID 946524/Shield # 25389
Nicholas Rios
Shield No. # 06583
c/o 32nd Pct.
250 West 135th Street
New York, NY 10030

Police Officer Westendorf,
Tax ID # 941256
c/o 32nd Pct.
250 West 135th Street
New York, NY 10030

Police Officers
John and Jim Doe
(Fictitious Names)
One Police Plaza
New York, NY 10007

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Defendants.

-----X
The Plaintiffs, Savion Thomas and Musa Lucas and by their attorneys, Emdin & Russell,
LLP, complaining of the Defendants respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief that at all times hereinafter mentioned, the Defendant "City" its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York hereinafter referred to as "NYPD" including all the police officers thereof.

3. That at all times hereinafter mentioned, specifically on the 27th day of February 2019, at approximately 3:30-5:30 P.M., at the location of 2527 8th Avenue in New York County, within the State of New York Plaintiffs observed an abundance of police officers telling students to “Get off the Block” and/or “Go into the Store”. Both Plaintiffs are students at Eagle Academy for Young Men and were lawfully walking home and/or to the bodega located at 2527 8th Avenue, hereafter referenced to as the “location”; the Plaintiffs were lawfully present and had not committed a crime.

4. Upon information and belief, that at all times hereinafter mentioned, specifically on the 27th day of February 2019 at approximately 3:30-5:30 p.m., Police Officer Sanchez, Navarez, Tax ID #946524/Shield #25389, Westendorf, Tax ID 941256, Police Officer John and Jim Doe hereinafter collectively referred to as “the officers” were screened, interviewed, hired by the “City”, trained by the “City”, was retained by the “City”, and was investigated, monitored, supervised and/or disciplined by the “City”.

5. That the Plaintiff’s filed and served a Notice of Claim on or about May 22, 2019.

6. The City acknowledged receipt of the Notice of Claim and held a 50(h) hearing of S.T. on/or about May 29, 2019 and held a 50-H hearing on September 17, 2019. The City acknowledged receipt of the Notice of Claim as to Musa Lucas on/or about May 29, 2019 and held a 50-H hearing on January 30, 2020.

7. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the Defendant, City of New York and the said Defendant has neglected or refused to make any adjustment or payment thereof.

8. That this action is commenced within one year and 90 days after the cause of action arose.

9. Savion Thomas is a United States Citizen and is referred hereinafter as S. T.

10. Musa Lucas is a United States Citizen and is referred hereinafter as M. L.
11. S. T. all relevant times hereunder resides at 444 Jamaica Avenue, Apartment 6R Brooklyn, New York 11208.
12. M. L. at all relevant times hereunder resides at 2225 5th Avenue Apartment 10F New York, New York.
13. Upon information and belief at all times hereinafter mentioned, and specifically on the 27th day of February, 2019, "Sanchez", "Navarez", "Westendorf", "John" and "Jim", at approximately 3:30-5:30 p.m., were present at or near the vicinity of 2527 8th Avenue New York, New York and were acting within the scope of their employment and under the direction of the "City", and "NYPD" as their agents, servants and/or employee(s).
14. That the "Officers", individually and collectively, at all relevant times hereunder, acted as a police officer, and was required to follow the rules and regulations as contained in the New York City Patrol Guidelines.
15. That on February 27, 2019 the Plaintiffs were lawfully at the "location" when Defendant Sanchez began pushing other Eagle Academy students around, in and out the "location". Defendant then ordered Plaintiff Savion and other students to go into the location.
16. Plaintiff complied although he was heading into the store as he usually does after school. Sanchez then pushed another student into S. T. and pushed both further into the location. Once inside the location Sanchez argued with another Eagle Academy student yelling "Get out of the store".
17. S. T observing Sanchez' aggressive behavior said nothing until Sanchez pushed another student into the Plaintiff for which the Plaintiff prevented said student from falling to the floor.

18. S.T then asked why Sanchez was pushing people for which Sanchez said "Shut up". S. T replied "Stop pushing people".

19. Immediately thereafter Sanchez grabbed S.T. and pushed him out of the store and slammed him against the wall/gate of the location. Plaintiff was held by his neck and head and pushed face first into the gate/wall area of the location.

20. Sanchez stated/implied by his statement this what you get for talking.

21. S.T. was then arrested by Navarez, handcuffed and walked to the 32nd precinct.

22. S.T. was falsely detained, arrested, and imprisoned for approximately two hours before being released as he was issued a Desk Appearance Ticket. While Sanchez was being falsely imprisoned his mother Serina Moya was being threaten with statements that her son would be processed and taken to Central Booking if she did not stop asking questions or asking to file a complaint. Serina Moya was told to "Back off".

23. S.T. was issued a Desk Appearance Ticket for which said ticket was dismissed for "Facial Legal Insufficiency" upon the second Court appearance.

24. At the time as M.L. watched S.T. being battered and assaulted, by having his face slammed into a glass window, gated/wall, M.L. was then grabbed, thrown and slammed against the location's gates, which were waist high. M.L. was almost caused to fall over said gates.

25. M.L. was then hit in the chest repeatedly while Jim and/or John Doe yelled "Stop resisting". M.L arms were held apart as he was hit in the chest; he was grabbed from behind by way of hi coat and nap-sack. Musa never resisted and was unaware why he was being detained, battered and assaulted.

26. M.L. was tightly handcuffed by Westendorf and walked to the 32nd Precinct.

27. M.L., as well as Savion were illegally searched at the location and the 32nd Precinct and was charged with Disorderly Conduct by way of a Desk Appearance Ticket amongst other charges.

28. M.L. was falsely detained, arrested and imprisoned for approximately 2 hours. During his detention he complained about the handcuffs being too tight but his complaints were ignored.

29. M.L. suffered bruising to his wrists and chest.

30. S.T. suffered bruising to his head and body/limbs.

31. S.T. and M.L. did not consent to being detained, battered, assaulted and arrested.

32. M.L. case was dismissed upon his second Court appearance because it too was "Facially Legally Insufficient".

33. S.T. and M.L. did not commit any crimes.

34. At no time did any named, known or unowned officer intervened in the illegal detention, search, seizure, false arrest, false imprisonment, battery, assault, abuse of power/authority and excessive force on behalf of S.T. and M. L.

35. S.T. and M.L. were compelled to appear in Court on numerous dates.

36. S.T. and M.L. were and are at all times innocent of all charges and had committed no crime.

37. S.T. and M.L. sustained physical and emotional injury as a result of the defendants conduct.

38. That this action falls within one of the exceptions of CPLR 1601.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFFS
AGAINST ALL NAMED DEFENDANTS FOR FALSE IMPRISONMENT**

39. The Plaintiff's repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "38" with the same force and effect as if more fully and at length set forth herein.

40. That beginning on or about the 27th day of February 2019, at the approximate hours of

3:00-5:30 p.m. at or near the vicinity of 2527 8th Avenue, New York, New York and continuing to 32nd Precinct until released respectively, the Defendant's, and their agents, servants and/or employees intentionally handcuffed and imprisoned the Plaintiff's, without any just cause or grounds, therefore and held them against their will under full force of arms.

41. That said imprisonment was caused by the Defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds or any cause to believe that the Plaintiffs were guilty of any crimes, or that the Defendants had just cause to imprison the Plaintiffs.

42. The Plaintiffs were wholly innocent of any crime and did not contribute in any way or manner to their arrest or imprisonment by the Defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against their will.

43. That the Defendants, their agents, servants and/or employees, as set forth above, intended to confine the Plaintiffs; in that the Plaintiffs were conscious of their confinement; the Plaintiffs did not consent to the confinement; and the confinement was not otherwise privileged.

44. That by reason of the aforesaid, false imprisonment and detention of the Plaintiffs, they were subjected to great indignity, humiliation, pain and great distress of mind and body and the said Plaintiffs have been otherwise damaged.

45. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AND AS FOR A SECOND CAUSE OF
ACTION FOR FALSE ARREST AGAINST ALL NAMED DEFENDANTS**

46. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "45" with the same force and effect as if more fully and at length

set forth herein.

47. That on the 27th day of February, 2019, at approximately 3:30-5:30 p.m. the Defendants, and their agents, servants and/or employees intentionally and maliciously arrested, handcuffed, detained and imprisoned Plaintiffs, without any just cause or grounds therefore, and held them against their will under full force of arms until they were released from the 32nd Precinct.

48. That the Plaintiffs were falsely arrested, imprisoned and accused by the Defendants, their agents, servants and/or employees of having committed the crimes of Disorderly Conduct, Resisting Arrest, Obstruction of Governmental Administration among other charges.

49. That said arrest was caused by the Defendants and their agents, servants, and/or employees, without any warrant or other legal process, without authority of the law and without any reasonable grounds or cause to believe that the Plaintiffs were guilty of any crime.

50. The Plaintiffs were wholly innocent of any crime and did not contribute in any way or manner to their arrest by the Defendants, their agents, servants and/or employees and were forced to submit to the aforesaid arrest and imprisonment entirely against their will.

51. The Defendants, their agents, servants and/or employees, as set forth above, intended to seize, handcuff and arrest the Plaintiffs; the Plaintiff were conscious of their arrest and confinement; the Plaintiffs did not consent to their arrest and confinement; and the arrest and confinement was not otherwise privileged.

52. That by reason of the aforesaid false arrest and false charges filed against them, the Plaintiffs was subjected to great indignity, humiliation, pain and great distress of mind and body and the said Plaintiffs have been otherwise damaged.

53. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the

jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS AGAINST ALL NAMED DEFENDANTS
FOR ASSAULT AND BATTERY:

54. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "53" with the same force and effect as if fully set forth herein.

55. Upon information and belief, on or about the 27th day of February, 2019, commencing at the approximate hour of 3:30-5:30 p.m. at or near the vicinity of 2527 8th Avenue, New York, New York, Defendant "officers", while acting in the scope of their employment as police officers and as agents for the Defendant the "City", without just cause or provocation and with great force and violence, detained, battered, assaulted, punched, grabbed, pushed, struck and threw S.T. into a wall/gate and/or glass window and threw M.L. over a gate as he was battered and assaulted

56. Defendants refused to provide medical treatment to both S.T. and M.L., the entire time in their custody.

57. The Plaintiffs were searched, photographed and fingerprinted inside the precinct.

58. That the Defendants, their agents, servants and/or employees, including but not limited to "officers" were acting as an agent on behalf of the Defendant "City", within the scope of his employment, intentionally, willfully, and maliciously battered and assaulted the Plaintiffs, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact with the Plaintiffs and intentionally did an act which threatened to and did cause such contact to the Plaintiffs. That said acts caused apprehension of such offensive contact to the Plaintiffs, and "officers" in a hostile and/ or offensive manner touched and beat the Plaintiffs without their consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiffs

and caused such batter in and about their body and limbs.

59. That "officers" used excessive and/or unreasonable force to effectuate the Plaintiffs arrest.

60. That said acts occurred within the scope of the police officers employment with the "City"

61. That by reason of the aforesaid intentional battery and assault, the Plaintiffs suffered and still continue to suffer from physical and psychological injuries and were rendered sick, sore, and lame, and among other things suffered conscious pain and suffering, and that they were otherwise damaged.

62. That by reason of the aforesaid battery and assault, the Plaintiffs has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST DEFENDANTS FOR MALICIOUS PROSECUTION**

63. Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "62" with the same force and effect as if more fully and at length set forth herein.

64. The Defendants filled out false police reports, and issued a DAT to the Plaintiffs for the purpose of prosecuting them for the charge that they knew that they did not commit.

65. The Defendants took such actions, knowingly and with a malice disregard for the truth, and did so with the intent to cover up the illegal arrest of the Plaintiffs and the injuries that they sustained at the hands of the police.

66. The Plaintiffs were at all times innocent of any crime charged.

67. That due to the malicious prosecution the Plaintiffs were caused to be in conveyance and had to retain attorneys to defend himself.

68. That by reason of the aforesaid malicious prosecution, the Plaintiffs have been damaged in

a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 AGAINST THE CITY OF NEW YORK**

69. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "68" with the same force and effect as if more fully and at length set forth herein.

70. That upon information and belief, on or about the 27th day of February, 2019 at or about approximately 3:30-5:30 P.M. at or near the vicinity of 2527 8th Avenue, New York, New York and continuing to 32nd Precinct in New York, New York, Defendant, "officers" were present as part of their regular course of business with the City of New York.

71. That Plaintiffs were lawfully present at the vicinity of 2527 8th Avenue, New York, New York.

72. That the Defendant "officers" without probable cause or reasonable suspicion detained, battered, assaulted, arrested and imprisoned the Plaintiffs.

73. That the Plaintiffs were physically abused, thrown into the location, illegally searched and seized.

74. M.T. was punched several times as both S.T. and M.T. were handcuffed by the "officers", acting as an agent, servant and/or employee for Defendant, City, without provocation, to handcuffed, seize and arrest the Plaintiffs.

75. Defendants then refused to provide medical treatment to S.T. and M. L.

76. The officers denied the Plaintiff prompt and necessary medical attention.

77. That all acts committed by "the officers" and other agents, servants, and/or employees

and/or agents of the Defendant "City", were committed within the scope of their employment and under color of law, and while said officer was acting under the custom, policy, rules and/or regulations of the City.

78. That said acts constituted an illegal seizure of the Plaintiffs and deprived the Plaintiffs of their rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

79. That said acts constituted cruel and unusual punishment.

80. That said acts violated the Plaintiffs rights to due process of law.

81. That the Defendant, "City" caused or created a policy and/or custom, and acted with deliberate indifference to patterns and /or police practices which included illegal seizures, false arrests, condoning or tolerating excessive or arbitrary use of force; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; failing to properly supervise, train, investigate or discipline officers; engaging in a pattern of falsely accusing individuals who were victims of excessive use of force with having committed a crime to cover up illegal police conduct; and engaging in police cover-up, any and for all of the above contributing to Plaintiffs false arrest, and prosecution, and injuries.

82. The City negligently trained, retained, retrained, supervised, disciplined, monitored and/or investigated the defendant officers, when, upon information and belief they had knowledge of their violent propensities and prior bad acts.

83. The Defendants actions on February 27, 2019 were performed under the color of the

policies, statute, ordinances, rules and regulations of the City of New York.

84. That the Plaintiffs did not commit any illegal act, either before or at the time they were falsely arrested and imprisoned, battered, assaulted, and deprived them of their constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

85. That by reason of the aforesaid, the Plaintiffs were injured in mind and body, and they were damaged.

86. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SIXTH THROUGH TENTH CAUSES OF ACTION ALLEGING
VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTION 1983, BY "SANCHEZ,
NAVAREZ, WESTENDORF JOHN AND JIM DOE" EACH IN HIS INDIVIDUAL
CAPACITY AND AS AN AGENT OF THE CITY OF NEW YORK**

87. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "86" with the same force and effect as if more fully and at length set forth herein.

88. That at all times hereinafter mentioned, "officers" were employed by the Defendant The City of New York and/or The New York City Police Department and each was acting under the color of his official capacity and their acts and actions were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

89. That at all times hereinafter mentioned, the "officers" acted pursuant to orders and

directives from Defendant, The City of New York.

90. That during all times hereinafter mentioned, "officers" acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that they were acting under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of the Plaintiffs, and deprived them of the rights, privileges and immunities secured to them by the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and/or Section 1986.

91. That the unlawful and illegal conduct of the Defendant officers deprived the Plaintiffs of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of Plaintiffs to be secure in their person and effects against unreasonable search and seizure, and the right not to be subjected to excessive force, under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right of Plaintiffs not to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.
- c) The right to be free of cruel and unusual punishment.
- d) The right not to be discriminated against based on race, age or creed.
- e) The right to prompt and necessary medical attention.
- f) The right to due process of law.

92. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure of Plaintiffs person, their false arrest and false imprisonment, battery and

assault, the officers conspiracy to violate the Plaintiffs due process of law and the malicious prosecution of the Plaintiffs, Defendant "officers", violated Plaintiffs rights and privileges as provided to him in the Constitution of the United States of America, and provided to them in the Constitution of the State of New York, and laws thereto, the Defendant officers violated 42 U.S.C. §1983.

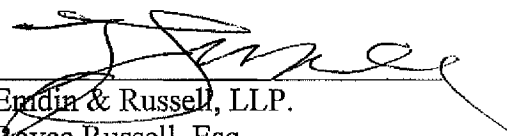
93. That as a direct proximate result of the Defendants actions the Plaintiffs, were subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

94. That by reason of the aforesaid, the Plaintiffs were injured in mind and body, still suffer and upon information and belief, will continue to suffer great physical and mental pain, and they have expended and incurred divers sums of money in an effort to cure themselves of said injuries, to extricate themselves from the indignities and humiliation fostered upon them by the actions of the "officers", individually and collectively.

95. That by reason of the aforesaid, the Plaintiffs, have been damaged in a sum exceeding the jurisdiction of the lower courts, and seek compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the Plaintiffs demands judgment against the Defendants on the First through Tenth cause of action in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages and such other relief as to the court seems just and proper on the first through sixth causes of action, and such further relief as to the court seems just and proper.

DATED: New York, New York
February 26, 2020


Emdin & Russell, LLP.
Royce Russell, Esq.
Attorneys for Plaintiffs
Office and P.O. Address
C/o Jeffrey L. Emdin, Esq.
330 West 38th Street Ste 302
New York, New York 10018
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

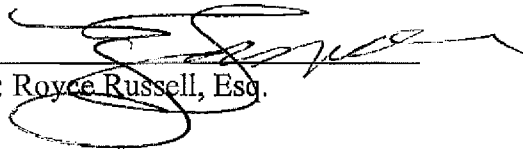
That I am an attorney associated with the law firm of Emdin, & Russell, LLP., the attorneys of record for the Plaintiffs in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiffs is that the Plaintiffs do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
February 26, 2020


By: Royce Russell, Esq.